

TITLE 477

MEDICAID ELIGIBILITY

CHAPTER 29

HERITAGE HEALTH ADULT PROGRAM

001. SCOPE AND AUTHORITY. These regulations govern the services provided under Nebraska's Medicaid program as defined by the Medical Assistance Act, Nebraska Revised Statute (Neb Rev. Stat) §§ 68-901 et seq.

002. DEFINITIONS. The following definitions apply to this chapter.

002.01 EDUCATIONAL PROGRAM. Educational program includes:

- (A) An institution of higher education as defined by federal law; or
- (B) A program of career and technical education as defined by federal law.

002.02 QUALIFYING MONTH. A month in which the applicant or beneficiary can demonstrate compliance with the work requirements. For applicants applying for benefits, the qualifying month must be the month prior to the month of application. For existing beneficiaries, the qualifying month must be one of the months during the time period between the beneficiary's initial determination or most recent regularly scheduled redetermination of eligibility and the beneficiary's next regularly scheduled redetermination of eligibility.

002.03 WORK PROGRAM. Work program has the meaning given to it under applicable federal law.

002.04 WORK REQUIREMENTS. A requirement that all applicants or beneficiaries within the Heritage Health Adult (HHA) program demonstrate sufficient work, education, or community service activities, or an exception to such activities, in order to maintain coverage under Nebraska Medicaid.

003. HERITAGE HEALTH ADULT (HHA) PROGRAM. In order to be eligible for Nebraska Medicaid under the Heritage Health Adult (HHA) program, an individual must meet the following eligibility criteria.

003.01 METHODOLOGY AND INCOME LIMIT. Eligibility for the Heritage Health Adult (HHA) program is determined using the modified adjusted gross income (MAGI) methodology. In order to be eligible in the Heritage Health Adult (HHA) program, an individual must have household income equal to or less than 133% of the federal poverty level (FPL).

003.02 NON-FINANCIAL CRITERIA. In order to be eligible in the Heritage Health Adult (HHA) program, an individual must:

- (A) Be age 19 or older and under age 65;
- (B) Not be pregnant;
- (C) Not be entitled to or enrolled in Medicare Part A or B; and

- (D) Not be eligible for or enrolled in coverage in any of the following groups: parents and caretaker relatives, pregnant women, children under age 19, former foster care, individuals receiving IV-E assistance, transitional medical assistance (TMA) with or without a premium, and Nebraska Medicaid for the aged, blind, and disabled.

003.03 COVERAGE FOR DEPENDENT CHILDREN. Parents and caretaker relatives of dependent children are ineligible for coverage under the Heritage Health Adult (HHA) program unless all dependent children living in the household are enrolled in Nebraska Medicaid, the Children's Health Insurance Program (CHIP), or are otherwise enrolled in minimum essential coverage as defined by state and federal law

003.04 INDIVIDUALS WHO BECOME PREGNANT WHILE ENROLLED IN THE HERITAGE HEALTH ADULT (HHA) PROGRAM. If an individual becomes pregnant during enrollment in the Heritage Health Adult (HHA) program, the individual will remain in the Heritage Health Adult (HHA) program until eligibility is redetermined at the end of the postpartum period.

003.05 WORK REQUIREMENTS. All applicants or beneficiaries through the Heritage Health Adult (HHA) program must demonstrate compliance with work requirements in order to be eligible for the program.

003.05(A) WORK REQUIREMENTS QUALIFYING ACTIVITIES. All applicants or beneficiaries must meet one or more of the following requirements in a qualifying month to comply with work requirements:

- (i) Work not less than 80 hours;
- (ii) Complete not less than 80 hours of community service;
- (iii) Participate in a work program for not less than 80 hours;
- (iv) Be enrolled in an educational program for at least half of the program's full-time enrollment;
- (v) Engage in any combination of work, community service, a work program, or educational program for a total of not less than 80 hours; or
- (vi) Have income that is not less than the applicable federal minimum wage multiplied by 80 hours per month.

003.05(A)(1) SEASONAL WORK. For seasonal work, all applicants or beneficiaries must have an average income in the six months preceding the application or renewal date that is not less than the applicable minimum wage multiplied by 80 hours per month.

003.05(B) WORK REQUIREMENTS EXCEPTIONS. All applicants or beneficiaries shall be deemed to have complied with work requirements for a qualifying month if:

- (i) For part or all of a qualifying month the applicant or beneficiary:
 - (1) Was a specified excluded individual;
 - (2) Was under the age of 19;
 - (3) Was entitled to or enrolled in Medicare Part A or B; or
 - (4) Was eligible for or enrolled in coverage in any of the following groups: parent and caretaker relatives, pregnant women, children under age 19, former foster care, individuals receiving IV-E assistance, transitional medical assistance (TMA) with or without a premium, and Nebraska Medicaid for the aged, blind, and disabled;
- (ii) At any point during the three-month period preceding the application or renewal date, the applicant or beneficiary was an inmate of a public institution;
- (iii) The applicant or beneficiary receives inpatient hospital services, nursing facility services, services in an intermediate care facility for individuals with developmental disabilities (ICF/DD), inpatient psychiatric hospital services, or such other services of similar acuity as determined by Nebraska Medicaid;
- (iv) The applicant or beneficiary resides in a county with a federally declared emergency or disaster;
- (v) The applicant or beneficiary resides in a county with an unemployment rate that is at or above the lesser of:
 - (1) Eight percent; or
 - (2) One and a half times the national unemployment rate; or
- (vi) The applicant or beneficiary or their dependent must travel outside of their community for an extended period of time to receive medical services necessary to treat a serious or complex medical condition that are not available within their community of residence.

003.05(C) SPECIFIED EXCLUDED INDIVIDUALS. A specified excluded individual is an individual who is:

- (i) Under 26 years of age and in foster care or eligible for the former foster care program;
- (ii) An Indian or Urban Indian as such terms are described in federal law;
- (iii) A California Indian as described in federal law;

- (iv) Determined otherwise eligible as an Indian for the Indian Health Service (IHS) under regulations promulgated by the federal Secretary of Health and Human Services;
- (v) The parent, guardian, caretaker relative, or family caregiver as defined by the Recognize, Asset, Include, Support, and Engage (RAISE) Family Caregiver Act of a dependent child 13 years of age or under or a disabled individual;
- (vi) A veteran with a disability rated as total under federal law;
- (vii) Medically frail or otherwise has special medical needs as defined by the federal Secretary of Health and Human Services or federal law;
- (viii) In compliance with any requirements imposed pursuant to Temporary Assistance for Needy Families (TANF) under federal law;
- (ix) A member of a household that receives Supplemental Nutrition Assistance Program (SNAP) under federal law and is not exempt from a work requirement under the same federal law;
- (x) Participating in a drug addiction or alcoholic treatment and rehabilitation program as defined in federal law;
- (xi) An inmate of a public institution as defined by this title;
- (xii) Pregnant; or
- (xiii) Entitled to postpartum medical assistance pursuant to this title.

003.06 WORK REQUIREMENTS PARTICPATION TIMEFRAMES. To be eligible for Nebraska Medicaid through the Heritage Health Adult (HHA) program, an applicant must demonstrate engagement in a qualifying activity or be subject to an exception in the calendar month preceding the month of application. To remain eligible, beneficiaries enrolled in the Heritage Health Adult (HHA) program must demonstrate compliance with work requirements in a qualifying activity or be subject to an exception for at least one month during the time period between the beneficiary's initial determination or most recent regularly scheduled redetermination of eligibility and the beneficiary's next regularly scheduled redetermination of eligibility.

003.07 DOCUMENTATION OF COMPLIANCE. Applicants or beneficiaries must provide documentation of compliance with work requirements which meet the requirements set forth in state and federal law and regulations.

003.08 NOTICE OF NONCOMPLIANCE. If Nebraska Medicaid is unable to verify compliance with work requirements at initial application, renewal, or change in circumstance, the applicant or beneficiary has 30 calendar days

from receipt of the notice of noncompliance to provide verification to Nebraska Medicaid before their application or benefits may be denied or closed. If denied or closed, the applicant or beneficiary is still entitled to notice and fair hearing rights as laid out elsewhere in this title.

003.09 RENEWAL PERIOD. Beginning January 1, 2027, a redetermination of eligibility for continued benefits under the Heritage Health Adult (HHA) program must be completed every six months.

004. BINDING ON THE HERTIAGE HEALTH ADULT (HHA) PROGRAM. In the event of a conflict between the provisions of any section of this title and this chapter regarding Heritage Health Adult (HHA) program applications or renewals, the provisions of this chapter shall govern.

